

ELIZABETH II



1967 CHAPTER xviii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
St. Andrews Links. [14th July 1967]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act, 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the St. Andrews Links Order Short title,
Confirmation Act 1967.

SCHEDULE

ST. ANDREWS LINKS

Provisional Order to amend the provisions of the St. Andrews Links Order, 1932, relative to the powers to close the golf courses on special occasions and to make charges for admission to the said courses and for other purposes.

Whereas the provost, magistrates and councillors of the burgh of St. Andrews (hereinafter referred to as "the Town Council") are the municipal and local authority within the said burgh:

1894
c. lxxxiv.

And whereas by the St. Andrews Links Act, 1894, the then commissioners of the said burgh (who were the predecessors of the Town Council) were authorised to acquire the Links of St. Andrews as described in the First Schedule to the said Act for the purposes and with the powers in the said Act set forth:

And whereas the said commissioners acquired and the Town Council now own the said links except a small portion thereof feued to the Royal and Ancient Golf Club of St. Andrews by virtue of the powers conferred on the Town Council by the St. Andrews Links Order, 1924:

And whereas by the St. Andrews Links Order, 1932, as amended by the St. Andrews Links Order, 1946, the Town Council were authorised to close the said Links of St. Andrews and certain adjoining lands to the public during the holding of golf championships or competitions except upon payment of fees of admission but subject to certain limitations on the amount of the said fees of admission and in other respects:

And whereas it is expedient that the said limitations should be repealed or amended as provided in this Order and that the other provisions contained in the Order should be enacted:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title and
citation.

1. This Order may be cited as the St. Andrews Links Order 1967 and may, together with the St. Andrews Links Acts, 1894 to 1946, be cited as the St. Andrews Links Acts, 1894 to 1967.

2. In this Order unless there be something in the subject or context Interpretation. inconsistent with or repugnant to such construction the following words and expressions shall have the meanings hereby assigned to them (that is to say):—

“ Order of 1932 ” means the St. Andrews Links Order, 1932;

“ Order of 1946 ” means the St. Andrews Links Order, 1946;

“ Town Council ” means the provost, magistrates and councillors of the burgh of St. Andrews.

3.—(a) Subsection (1) of section 3 of the Order of 1932 shall be read Amendment of and have effect as if the words “ not exceeding such maximum sums Order of 1932. as are hereinafter in this Order set forth ” and the words “ Provided that while any of the golf courses on the said lands and property is or are so used and appropriated as aforesaid the remaining golf courses thereon shall always be open for play ” were omitted therefrom.

(b) Subsection (1) of section 4 of the Order of 1932 (as amended by the Order of 1946) shall be read and have effect as if —

(i) the words from the beginning to “ Provided that ”; and

(ii) in the second proviso the word “ further ”;

were omitted therefrom.

4. Section 9 of the Order of 1946 is hereby repealed.

Repeal.

5. The costs, charges and expenses of and incidental to the preparing Costs of for, obtaining and confirming of this Order, or otherwise in relation Order. thereto, shall be paid by the Town Council out of any charges on the golf courses of the Town Council.

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 10*d.* net

PRINTED IN ENGLAND



St. Andrews Links Order Confirmation Act 1967

CHAPTER xviii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

ST. ANDREWS LINKS

1. Short title and citation.
2. Interpretation.
3. Amendment of Order of 1932.
4. Repeal.
5. Costs of Order.